

25STCV32939 25STCV32939

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-01

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Case Number: 25STCV32939 Hearing Date: September 1, 2026 Dept: 309

Superior

Court of California

County

of Los Angeles

DEPARTMENT 17

TENTATIVE RULING

THE

GREEN LAW GROUP, LLP

vs.

COLE

MOSCATEL, et al.

Case No.: 25STCV32939

Hearing

Date: September 1, 2026

Plaintiff's

motion to strike Defendant's answer is GRANTED.

On 11/12/2025, Plaintiff the Green Law Group, LLC

(Plaintiff) filed suit against Defendant Cole Moscatel and 9000 Arlington Ave,

LLC (collectively, Defendants) alleging: (1) breach of contract; (2) open book account; (3) account stated; and (4) quantum meruit.

On 4/30/2026, Plaintiff moved to strike Defendant 9000 Arlington Ave, LLC (Defendant)'s answer.

The motion is unopposed.

Discussion

Plaintiff moves to strike Defendant's answer as 9000 Arlington Ave, LLC is a limited liability company, a legal entity, operating within the State of California and is recognized as such per the California Secretary of State website. A legal entity, such as a corporation or a limited liability company, cannot represent itself in court, either in propria personal or through an officer or agent who is not an attorney." (Vann v. Shilleh, (1975) 54 Cal.App.3d 192, 199, as referenced in Merco Constr. Engineers, Inc. v. Municipal Court (1978) 21 Cal.3d 724, 729.)

The Court agrees that Defendant's answer must be stricken, as it cannot self-represent in this action.

Based on the foregoing, Plaintiff's motion to strike Defendant's answer is granted.

It is so ordered.

Dated: September
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits

on the tentative, the party's email must include the case number and must identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.